

ORDER SHEET
IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

Crl. Misc. No.3141-B of 2026

Muhammad Ajmal Vs. The State, etc.

S.No. of order/ Proceedings	Date of order/ Proceedings	Order with signature of Judge, and that of parties of counsel, where necessary.
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03.06.2026. Mr. Wazir Ali Khosa, Advocate for the petitioner.
Mr. Muhammad Ali Shahab, Deputy Prosecutor
General with Shahid, SHO.
Nemo for the complainant.

Relief Sought: Muhammad Ajmal, petitioner seeks post arrest bail in case FIR No.431 dated 26.06.2025, under sections 376, 371A, 292 PPC registered at police station Saddar Jampur, District Rajanpur.

Accusation: The complainant alleges that her husband, Muhammad Ajmal (Petitioner), in order to secure clearance of a debt owed to Ghulam Nazuk a.k.a. Khani, compelled her at pistol point to accompany him to Nazuk’s residence, where she was subjected to rape by Nazuk. The petitioner video-graphed the act. Subsequently, Ajmal allegedly blackmailed her through this video, coercing her into repeated sexual intercourse with Nazuk and several other men. During these acts, Yasin (co-accused) is said to have acted as an armed guard. At one stage, another accused, Riaz Hussain allegedly attempted to sell her to other persons, thereby causing disappearance of evidence. On **26.05.2025**, the complainant managed to escape from her husband’s house. The FIR was registered one month later, on **26.06.2025**.

Investigative process: Petitioner was found involved in the commission of offence on the basis of sole statement of complainant with respect to offences complained of.

Arguments: (i) Learned Counsel for the Petitioner contends: the FIR does not specify dates or times of the recurring offences; no supporting medical or forensic evidence, including the alleged video, is available on record; co-accused Nazuk has already been granted bail; the Pakistan Penal Code, 1860 (“PPC”) does not contain a specific provision criminalizing such conduct by a husband, and the one-month delay in lodging the FIR casts doubt on the prosecution’s version.

(ii) Learned Deputy Prosecutor General responds; the complainant stated that the occurrences began approximately ten months prior to FIR registration; she volunteered for medical examination; the petitioner, being her husband, can be held liable for abetment of rape and for an attempt of offence under Section 371A PPC, as she was allegedly to be sold; preparation of a nude video constitutes an offence under Section 292 PPC. Further submits; the recurring nature of the offences inflicted severe trauma upon the complainant. Being held in captivity, she was deprived of the opportunity to report the crime promptly. The delay in lodging the report, therefore, cannot be construed as an absence of offence; rather, the circumstances demonstrate that the complainant remained under coercion and restraint, and the offences were in fact committed against her. Therefore, the petitioner is not entitled to bail at this stage.

Court’s consideration: The primary issue before the Court is the applicability of proper penal provisions against the present petitioner who is husband of the

complainant. For acts of illicit intercourse, offences of Zina, rape, fornication, and adultery are relevant. The question arises: where an individual does not himself commit sexual intercourse, nor is the direct perpetrator, but instead coerces, facilitates, or abets the commission of such offences, can he nonetheless be held criminally liable under these provisions.

Spousal abuse is undoubtedly an offence, yet the **PPC** does not contain a specific provision expressly titled “spousal abuse.” Instead, courts and practitioners rely on the implied interpretation of related provisions to address such conduct.

Court’s Observation: If a man or woman engages in sexual intercourse willfully, and the act is witnessed by four adult male Muslims, the individual committing the intercourse shall be held liable for the offence of **Zina**. The legal formality is mentioned in Section 5 of the Offence of Zina (Enforcement of Hudood) Ordinance, 1979. However, under the relevant Ordinance, after the omission of section 19 of said Ordinance, there exists no specific provision of **abetment** that would render the husband criminally responsible for such consent or facilitation. The erstwhile section 19 of the Ordinance is as under;

19. Application of certain provisions of Pakistan Penal Code, and amendment. (1) unless otherwise provided in this Ordinance, the provisions of section 34 to 38 of Chapter II, section 63 to 72 of Chapter III and Chapter V and VA of the Pakistan Penal Code, shall apply mutatis mutandis in respect of offences under this Ordinance.

(2) **Whoever is the guilty of abetment** of an offence liable to *hadd* under this Ordinance shall be liable to the punishment provided for such offence as tazir.

(3) In the Pakistan Penal Code,

(a) section 366, section 372, section 373, section 375 and section 376 of Chapter XVI and section 493,

section 497 and section 498 of Chapter XX shall stand repealed; and

(b) in section 367, the words and comma or to the unnatural lust of any person, shall be omitted.

(Emphasis supplied)

(ii) If a husband offers his wife for sexual intercourse with another person, several offences under the PPC may be attracted. Where the wife does not resist and complies with her husband's direction, her consent may render her liable for **fornication under Section 496B**, while the husband may be held responsible for **abetment under Section 109**.

(iii) Furthermore, if the husband persuades his wife to accompany him for sexual intercourse with another person in exchange for the release of debt, financial aid, service promotion, or any other benefit, he may be liable under **Section 365B PPC**. The residue of this section criminalizes inducing a woman, through intimidation, abuse of authority, or compulsion, to go from one place to another with the intent or likelihood that she will be forced or seduced into illicit intercourse with another person. In such circumstances, if the wife engages herself in sexual intercourse under compulsion, the act amounts to **rape under Section 375 PPC**. Although the wife's apparent consent may exist, it is vitiated by coercion, intimidation, or abuse of authority. Consequently, the husband would be liable for **abetment of rape**.

(iv) Section 371A PPC though applies where one sells, lets to hire or otherwise disposes of any person with intent that such person shall at any time be employed or used for the purpose of prostitution or illicit intercourse with any person or for any unlawful and immoral purpose, or knowing it to be likely that such person will at any time be employed or used for any such purpose, but it shall not be applied in cases where a husband, as a

matter of routine, does not use his wife for prostitution, nor does he sell or permanently dispose of her. Similarly, another person engaging in sexual intercourse with the wife under such circumstances would not be liable under Section 371B PPC or under the provisions of the Punjab Suppression of Prostitution Ordinance, 1961.

(v) Though provisions of Sections 497 and 498 PPC stood repealed by section 19 of the Offence of Zina (Enforcement of Hudood)) Ordinance 1979 yet they dealt with offences of adultery, and enticing or detaining a married woman with criminal intent that she may have illicit intercourse with any person. Adultery (Section 497 PPC) was defined as: *“Whoever has sexual intercourse with a person who is, and whom he knows or has reason to believe to be, the wife of another man, without the consent or connivance of that man, such act not amounting to the offence of rape, is guilty of the offence of adultery.”* This offence was distinct from fornication under Section 496B PPC, which applies where neither party is required to be married and both willfully engage in sexual intercourse. At first glance, these provisions appear to have some relevance to cases of spousal abuse. However, Section 497 PPC impliedly excludes liability where the act is committed with the consent or connivance of the husband, thereby significantly narrowing its application in such circumstances. By contrast, Section 498 PPC was to the effect that: *“Whoever takes or entices away any woman who is, and whom he knows or has reason to believe to be, the wife of another man, from that man or from any person having the care of her on behalf of that man, with criminal intent that she may have illicit intercourse with any person, or conceals or detains with that intent any such woman...”* This provision, unlike Section 497, created scope for

criminal liability where the husband himself consents to or facilitates the enticement, taking away, or detention of his wife for illicit purposes.

(vi) Sections 497 and 498 PPC were repealed by Section 19 of the Offence of Zina (Enforcement of Hudood) Ordinance, 1979. Although Section 19 was later omitted by Section 16 of the Protection of Women (Criminal Laws Amendment) Act, 2006, the law does not permit automatic revival of the repealed provisions. Revival requires express legislative action, not the mere repeal of the repealing law. In this regard, Section 6 and 6A of the General Clauses Act, 1897, and Section 6 of the Punjab General Clauses Act, 1956, are directly relevant.

The General Clauses Act 1897;

6. Effect of repeal. Where this Act, or any Central Act or Regulation made after the commencement of this Act, repeals any enactment hitherto made or hereafter to be made, then, unless a different intention appears, the repeal shall not—

(a) revive anything not in force or existing at the time at which the repeal takes effect; or

Section 6A. Repeal of Act making textual amendment in Act or Regulation. Where any Central Act or Regulation made after the commencement of this Act repeals any enactment by which the text of any Central Act or Regulation was amended by the express omission, insertion or substitution of any matter, then, unless a different intention appears, the repeal shall not affect the continuance of any such amendment made by the enactment so repealed and in operation at the time of such repeal.

The Punjab General Clauses Act 1956;

6. Revival of repealed enactments.— In any Punjab Act it shall be necessary, for the purpose of reviving either wholly or partially, any enactment wholly or partially repealed, expressly to state that purpose.

Thus, a statutory provision, once repealed, does not regain force or validity merely because the repealing enactment itself is subsequently repealed. The principle of law is that repeal operates to extinguish the provision unless it is expressly revived by competent legislation. In

other words, the mere repeal of the repealing statute does not, by implication, breathe life back into the earlier provision. Revival of a repealed law requires a clear and deliberate legislative act, not an automatic consequence of the repeal of the repealing law. This doctrine ensures certainty in statutory interpretation and prevents unintended restoration of provisions that the legislature had consciously removed from the statute book.

Although Section 199 of Cr.P.C., which prescribes the mode of taking cognizance of offences under Sections 497 and 498 of the PPC, technically remains on the statute book, in practice it has become a **dead letter of law**. The provision has lost its operative significance due to subsequent legislative developments and the introduction of new offences under the Protection of Women (Criminal Laws Amendment) Act, 2006. Its continued presence is more a reflection of legislative oversight than of deliberate retention. In effect, Section 199 Cr.P.C. stands as a piece of **legal deadwood**, surviving in text but devoid of practical utility, having fallen prey to the legislature's inadvertence in harmonizing procedural law with substantive amendments.

(vii) Sections 366, 372, 373, 375, 376, and 493 PPC were also repealed by Section 19 of the Offence of Zina (Enforcement of Hudood) Ordinance, 1979. However, the Protection of Women (Criminal Laws Amendment) Act, 2006 subsequently reenacted Sections 375 and 376 as well as Section 493 as Section 493A PPC, thereby expressly reviving those offences and its punishment with certain modifications. In contrast, the repealed provisions of Sections 366, 372, and 373 PPC were not revived, leaving them permanently excluded from the statute book. The 2006 Act did not merely restore

selected provisions; it also introduced a range of new sections into both the Cr.P.C. and the PPC, designed to modernize and broaden the scope of criminal liability in matters relating to sexual offences and exploitation. Among these were Sections 496A and 496B PPC, which were intended to address offences that had previously been covered under Sections 497 and 498 PPC. Importantly, these new provisions are more general in nature: they do not hinge upon the victim's marital status or the offender's knowledge thereof, thereby expanding the protective ambit of the law beyond the narrow confines of the earlier framework.

(viii) Thus, it is held that while the PPC does not explicitly define "spousal abuse," several provisions can be invoked to prosecute abusive conduct. These include 'enticing or taking away or detaining with criminal intent a woman' (496A), 'fornication' (Section 496B), 'abetment' (Section 109), 'abduction or inducement for illicit intercourse' (Section 365B), and 'rape' (Sections 375–376). Other relevant offences include 'selling or buying a woman' (Sections 371A & 371B) and 'prostitution' under the Punjab Suppression of Prostitution Ordinance, 1961. However, the limited scope of these provisions underscores a broader legislative gap in directly addressing spousal abuse. This gap is often supplemented by provincial domestic violence laws, which provide civil remedies and protective measures for victims, thereby complementing the criminal framework of the PPC.

(ix) The Punjab Protection of Women Against Violence Act 2016 addresses spousal abuse, for which husband can be proceeded against. Section 2(h) of the Act defines *domestic violence* as:

“Violence committed by the defendant with whom the aggrieved is living or has lived in

a house when they are related to each other by consanguinity, marriage or adoption.”

Further, Section 2(r) defines *violence* broadly to include: offence committed against the human body of the aggrieved person including abetment of an offence, domestic violence, sexual violence, psychological abuse, economic abuse, stalking or a cybercrime.

Under **Section 4**, a wife may file a complaint before the competent court to obtain a **protection order** of the kind provided in **Section 7** and other enabling provisions of the Act.

(x) The offences discussed above, namely those under Section 5 of the Offence of Zina (Enforcement of Hudood) Ordinance, 1979, Sections 365B, 375, 496A, 496B and offences under the Punjab Suppression of Prostitution Ordinance, 1961, are subject to different modes of cognizance.

For **Zina and fornication (Section 496B PPC)**, cognizance is taken only upon a complaint filed under **Sections 203A and 203C of the Code of Criminal Procedure (Cr.P.C.)**.

For **abduction/inducement (Section 365B PPC), rape (Section 375 PPC), enticement of woman (Section 496A PPC)** and offences under the **Punjab Suppression of Prostitution Ordinance, 1961**, cognizance is taken on the basis of a police report initiated through the registration of a First Information Report (FIR).

If prosecution is initiated before a court on a specific allegation, such as zina, rape, enticement of woman, fornication, abduction, selling or buying a woman, it cannot subsequently be converted into another form of prosecution for the purpose of convicting the accused. Each offence must be tried strictly within the framework of its own statutory definition and procedural requirements. This dictate of law is incorporated in

section 5A of the Offence of Zina (Enforcement of Hudood) Ordinance 1979 which is as follows;

5A. No case to be converted, lodged or registered under certain provisions. No complaint of zina under section 5 read with section 203A of the Code of Criminal Procedure, 1898 and no case where an allegation of rape is made shall at any stage be converted into a complaint of fornication under section 496B of the Pakistan Penal Code (Act XLV of 1860) and no complaint of fornication shall at any stage be converted into a complaint of zina under section 5 of the Offence of Zina (Enforcement of Hudood) Ordinance, 1979 (Ordinance No. VII of 1979) or an offence of similar nature under any other law for the time being in force.

The statutory framework expressly prohibits the court from altering a conviction or sentence to another penal provision in cases involving rape, enticement of woman, fornication, and related offences, even if the evidence on record might otherwise justify such a course. While Sections 237 and 238 of the Code of Criminal Procedure permit substitution of charges for other offences under the PPC or special laws where applicable, this flexibility does not extend to sexual offences such as zina, rape or fornication, where the law mandates strict adherence to the specific provisions under which cognizance is taken.

(xi) Coming to the case at hand, the considerable delay in lodging the crime report, coupled with the absence of corroborative medical or video evidence, and the non-availability of incriminating material suggesting the complainant was sold or forcibly used as a prostitute, must be weighed carefully. Added to this is the fact that co-accused Ghulam Nazuk (alias Khani) has already been admitted to bail. In these circumstances, the question of the petitioner's abetment in the alleged offences is to be determined by the learned trial court after recording of evidence.

Furthermore, since the prosecution in the FIR has invoked Sections 376, 371A, and 292 of the PPC, the proceedings against the petitioner are confined to three possible dimensions: (i) abetment in the commission of rape under Section 376 PPC, (ii) attempt to commit the offence contemplated under Section 371A PPC, or (iii) liability under Section 292 PPC for video-graphing the act of rape, for which at present scanty material is available on the record which makes the case of petitioner that of further inquiry. Principle whereof have been laid down by Supreme Court of Pakistan in various cases¹. Petitioner is behind the bars since 04.01.2026, investigation of the case is complete and his person is no more required for the purpose of further investigation, therefore, keeping the petitioner behind the bars will serve no useful purpose to the prosecution.

Order: In view of what has been discussed above, the petition in hand is **allowed** and the petitioner is admitted to bail subject to furnishing bail bonds in the sum of Rs.500,000/- (five lacs) with one surety in the like amount to the satisfaction of the trial Court

Conclusion: Observations made hereinabove are tentative and shall have no bearing on the merits of the case during the actual trial. In case of misuse of the concession of bail or deliberate delay attributable to the petitioner in conclusion of trial, the learned trial Court shall be at liberty to proceed in accordance with law including cancellation of bail.

Direction: Women, as an integral part of society, occupy an exalted position under the commands of Allah

¹ *“MUHAMMAD SHAKEEL versus The STATE and another” (2025 SCMR 1952), “AKHTAR versus KHAWAS KHAN and another” (2024 SCMR 476) “MAZHAR ALI versus The STATE and another” (2025 SCMR 318), “ATTAULLAH versus The STATE” (2024 SCMR 1210), “MUHAMMAD ASLAM versus The STATE and others” (2023 SCMR 397) “MUHAMMAD NAWAZ alias KARO Versus The STATE” (2023 SCMR 734), “NOOR KAMAL and another Versus The STATE and another” (2023 SCMR 999), “MUHAMMAD TANVIR versus The STATE and others” (2017 SCMR 366) & “HAIBAT KHAN versus The STATE and others” (2016 SCMR 2176).*

Almighty and in the sayings of the Holy Prophet Muhammad (peace be upon him). The Qur'an declares:

“And they (women) have rights similar to those (of men) over them in kindness...”
(Surah Al-Baqarah, 2:228)

The Prophet Muhammad (peace be upon him) emphasized:

“The best of you are those who are best to their wives.” (Sunan al-Tirmidhi, Hadith 1162)

These divine and prophetic injunctions underscore the duty of safeguarding women from harm and injustice. **Therefore, before parting with this order**, this Court feels compelled to observe that mere regulation of domestic violence through protection orders under the Punjab Protection of Women Against Violence Act, 2016, cannot suffice to alleviate the miseries of this vulnerable class of society. The gravity of spousal abuse demands that it be addressed through substantive penal legislation. It is imperative that the legislature consider enacting a specific offence of spousal abuse, either by insertion into the Pakistan Penal Code or through a distinct special law, so that such acts are not merely treated as civil wrongs but are recognized and punished as criminal offences. Only then can the dignity, honor, and protection of women, as commanded by Allah Almighty and exemplified by the Prophet Muhammad (peace be upon him), be truly safeguarded.

(MUHAMMAD AMJAD RAFIQ)
JUDGE

Approved For Reporting

Judge

Signed on 08.06.2026

M.Umar*